

Purchase Agreement

Date : Jun 2, 2026

Number : 4500000406

Parties to the Agreement

The Buyer

Name : JSC Rustavi Azot - (GERA)

Registration ID : 404519794

Address : JSC Rustavi Azot Fertilizer - , 2 Mshvidoba Street, Rustavi, 3700, Rustavi, Tbilisi, Georgia

Representative : JAY JAJOO

Status : General Director

The Seller

Name : GE Vendor - IMP

Corporate Form: GE Vendor - IMP

Registration ID : 7778888

Address : Mumbai713203IN

Country of Registration : India

Representative : Mr. Shravan Modi

Designation : Manager

Contact Person Email :

Standard Terms of the Agreement

1. Article. Subject matter of the Agreement

1.1 By signing this Agreement, the Seller undertakes to sell the product to the Buyer as per the terms determined in this Agreement and the Buyer undertakes to pay the product price as per the terms agreed in this Agreement.

2. Article. Product and product price

2.1 Product description/technical details: The product description and the details are provided in the #1 Annex.

2.2 The product price is provided in #1 Annex. Unless otherwise specified in Annex #1, the indicated price includes all applicable taxes (including VAT).

2.3 Payment conditions – the product price shall be paid through the bank transfer, on the bank account submitted by the Seller to the Buyer. In case if the product price is fixed in foreign currency, the Seller is a non-Georgian resident entity/person and the product price has to be paid in non-Georgian resident commercial bank account, the payment will be processed in agreed foreign currency. If the product price has to be paid in Georgian resident commercial bank account, the price will be paid in equivalent amount of GEL, as per the official exchange rate determined by the National Bank of Georgia on the day of the transfer.

2.4 Payment terms – payment terms are provided in #1 annex.

2.5 Upon the request of the Buyer, the Seller shall ensure the provision of the Tax Residence Certificate, issued by the relevant country, in the form satisfactory to the Buyer, within the reasonable time from the request of the Buyer.

2.6 The price payable for the product shall not be higher than that stated in the #1 Annex and unless otherwise stated shall be:

2.6.1 inclusive of all charges including without limitation packaging material, packing, shipping, loading, carriage, insurance and

delivery of the Products to the delivery address and any duties, imposts, levies or taxes; and

2.6.2 fixed for the duration of the Agreement.

2.7 Seller covenants that if it should at any time prior to the delivery of the product sold hereunder sell similar product in similar quantities to any third party at lower prices, it will notify the Buyer in writing of such lower prices, and the Buyer shall be entitled to receive the full benefit of such lower prices from the date of such sale to any third party.

2.8 No variation in the price nor extra charges can be made (whether on account of increased material, labor or transport costs, fluctuation in rates of exchange or otherwise) without the prior written consent of the Buyer. Any unilateral change of the price by Seller, even partial, shall entitle the Buyer to cancel the Agreement partially or totally as the Buyer considers appropriate without charge or penalty.

2.9 Without prejudice to any other right or remedy, the Buyer reserves the right to set off any amount owing or asserted to be owing at any time from the Seller or associated company of the Seller to the Buyer against any sums payable by the Buyer to the Seller or associated company of the Seller.

3. Article. Delivery terms

3.1 Delivery time – provided #1 annex.

3.2 Delivery place – provided #1 annex

3.3 Delivery expenses – all expenses related to the sale and delivery of the product by the Seller to the Buyer is included in the product price and shall be borne by the Seller.

3.4 Product delivery – By delivering the product as per the terms of this Agreement, the Seller transfers the ownership rights on the product to the Buyer which shall be further confirmed by the Delivery-Acceptance act, executed among the parties. The Seller shall also be liable for the transfer of all relevant documentation and information that is reasonably necessary for the use of the product by the Buyer.

3.5 If the purchase contract includes the provision of services, the seller shall obey and take into consideration the instructions related to the services issued by the Buyer.

3.6 The Product shall be properly packed, clearly labelled and adequately protected against damage and deterioration in transit. The packaging and shipment of the goods (including hardware, software) and/or licenses shall be mandatorily required to conform to the laws and regulations of the Country of Origin and delivery. The Seller undertakes to pack, mark and ship the Product in accordance with the requirement of Buyer. Products delivered shall comply with the description or samples or specifications provided by Buyer and shall always be subject to detailed inspection by Buyer for ascertaining whether the same are in conformity with the requirement or not, and until then Buyer shall be deemed to have not accepted such Product and upon any rejection of Product, the Seller shall be deemed to have failed to deliver the Product in accordance with this Agreement. In such event, Seller shall at its sole discretion, be entitled to either purchase the Product from other sources at Buyer's cost after due notice to the Buyer. In such an event, the Seller shall be liable to pay/reimburse the Buyer the price at which such Product has been purchased by the Buyer from other sources. Without prejudice to above, the Seller undertakes to indemnify Buyer for any loss or damage suffered by Buyer in this regard.

3.7 Insurance - Unless otherwise agreed in writing in the Agreement, the Seller shall insure the products up to the agreed point of delivery and thereafter it will be Buyer's responsibility to insure the Products. Any insurance policy taken out by the Seller must cover all damage and loss to the Products up to the full insurable value of the Products. Notwithstanding any other provision of this Agreement, in the event of any damage to the Products before the title passes to Buyer, the Buyer shall be entitled to receive the proceeds of any insurance policy taken out by the Seller up to the amount due to Buyer.

3.8 Title and Risk of Loss:

3.8.1 Domestic Purchases - The title for the products shall pass from the Seller to the Buyer when the Products are delivered at

the agreed point of delivery or when the Buyer has paid for the Products in part or in full, whichever is earlier. The risk of loss for the products shall remain with the Seller until the products are delivered at the agreed point of delivery and accepted by the Buyer.

3.8.2 International Purchases - Unless otherwise agreed in writing in the Agreement, the title and risk of loss for the products shall pass from the Seller to the Buyer in accordance with Incoterms 2020 on a DDP basis.

4. Article. Representations and warranties

4.1 Each party hereby represents and warrants as follows:

4.1.1 Due Incorporation - It is a duly Incorporated Company validly existing under the law of its jurisdiction of incorporation and has the power to own its product and carry on its business as it is being conducted.

4.1.2 Powers - It has the power and authority to execute, deliver and perform its obligations under this Agreement and the transactions contemplated by it. No limit on its powers will be exceeded as a result of execution of this Agreement.

4.1.3 Authorisations - It has taken all necessary action and obtained all required or desirable authorisations to enable it to execute, deliver and perform its obligations under this Agreement. Any such authorisations are in full force and effect.

4.2 The Seller additionally represents and warrants as follows:

4.2.1 The sale of the product by the Seller and using it by Buyer will not result in breaching any effective regulation of Georgia.

4.2.2 It has provided all relevant and necessary information about the product to the Buyer.

4.2.3 It complies with all applicable requirements of Georgian legislation, as well as international standards and best practices governing its activities and operations.

4.2.4 The Seller represents and warrants to the Buyer that the Products shall be of satisfactory quality, material and workmanship, merchantable, free of defect in design, material and workmanship and fit for any purpose for which they are intended and shall conform to the specifications and quantity set forth in the Order. In addition, the Seller represents and warrants that (a) the Products shall be adequately contained, packaged or labeled and shall conform to the affirmations of fact stated thereon, (b) the Products will comply with all applicable guidelines, standards, laws and regulations, including without limitation any voluntary codes of conduct relating to the Products and their sale, use and supply (c) in performing its obligations hereunder, the Seller shall fully comply with all applicable guidelines, standards, laws and regulations, (d) the Products or the intended use thereof do not infringe the intellectual property rights of any third party, and (e) any services included in the Products shall be performed in a professional manner, in accordance with applicable industry standards. Seller further represents and warrants that it is able to transfer and does transfer to the Buyer good and marketable title to the Products. All the representations and warranties set forth in this article shall survive acceptance of the Products and shall be in addition to any other warranties, express or implied, available to the Buyer. Neither inspection nor acceptance of the Products shall impair any of the foregoing warranties.

4.3 Each party acknowledges that the representations and warranties under this article were issued by parties for the purposes of the execution of this Agreement and the counter party relies on these representations and warranties while signing this Agreement.

5. Article. Rights and obligations of the parties

5.1 The Buyer is entitled to:

5.1.1 Request the delivery of the product as per the quality and details agreed among the parties.

5.1.2 Request the due, timely and good-faith performance of the obligations by the Seller.

5.2 The Buyer is obligated to:

5.2.1 Pay the product price as per the terms agreed in this Agreement.

5.2.2 Duly perform all other obligations determined in this Agreement.

5.3 The Seller is entitled to:

5.3.1 Request the payment of the product price as per the terms and conditions determined in this Agreement.

5.4 The Seller is obligated to:

5.4.1 Deliver the product to the Buyer at its own cost and expense and in compliance with the agreed quality and conditions.

5.4.2 Deliver the product to the Buyer on the agreed delivery place.

5.4.3 Ensure the dispatch of original documents (Invoice, packing list, B/L or CMR or airwaybill, custom declaration, Certificate of Origin, Certificate of Quality, or any other specific document required by the Buyer) through DHL / Fedex or other equivalent international express mail service, within 3 working days from the date of the dispatch of the goods. The Seller has to send the scan copies of the same document through the e-mail to the Buyer, to the e-mail address provided by the Buyer.

6. Article. Quality and guarantee

6.1 The Seller undertakes to deliver Products of the quantity, quality and description which correspond strictly to the technical specifications, quantity and description in this Agreement and/or the sample accepted by the Buyer and/or in any applicable specification supplied by the Buyer to the Seller. The Buyer's weights and/or measurements shall govern. The Products shall be without fault and shall be new and unused unless otherwise specified. The Seller shall comply with all applicable guidelines, standards, laws and regulations concerning the manufacture, packaging, packing and delivery of the Products. Upon reasonable prior notice, the Buyer shall have the right to inspect and test the Products, including without limitation at the loading port, and the Seller shall facilitate any such request. The Buyer may return any rejected Products at the Seller's risk and expense and/or require the Seller to replace any rejected Products within a reasonable time as stipulated by the Buyer. The right to reject shall extend to the whole or any part of a consignment. The Seller shall reimburse the Buyer for all costs, losses, damages and expenses incurred by the Buyer which are in any way attributable to the Seller's failure to provide Products which are compliant with the applicable technical specifications, quantity and description and/or the rejection of the Products, including without limitation any expenditure incurred by the Buyer in obtaining other products to replace the rejected Products, loss of profits and the cost of collection.

6.2 Guarantee term (if applicable) shall be provided in #1 annex.

6.3 If the delivered product does not meet the agreed quality standards and criteria, within the guarantee term, the Seller shall ensure the replacement of the product with new product of the agreed quality, within 2 working days from the date of the request of the Buyer.

6.4 The guarantee shall not apply to any damages or defects of the product incurred by the fault of the Buyer. The fact whether the damage is caused by the fault of the Buyer or not, shall be determined individually for each case.

6.5 The Seller shall be responsible for the correction of any damages/defects at its cost.

7. Article. Quality control and product defect

7.1 In case if the product does not meet the agreed criteria and quality standards, the Buyer shall be entitled to:

· A) Instruct the Seller to correct the product defect at its own cost within the additional time determined by the Buyer, and/or

· B) Correct the product defect at its own cost and request the Seller to reimburse all such costs as a damage or deduct these costs from any payables of the Buyer to the Seller, and/or

· C) Ensure the valuation of the total costs of defect correction and request the Seller to decrease the price proportionally or deduct these costs from any payables of the Buyer to the Seller.

7.2 In case if the Seller fails to correct the product defect within the additional time determined by the Buyer, or if depending on the circumstances the Buyer has lost interest the correction of defect (therefore determining the additional time is no longer relevant), the Buyer is entitled to terminate this Agreement unilaterally and request the reimbursement of damages.

7.3 For the avoidance of all doubts, parties hereby agree that the full or partial use of the rights granted to the Buyer as per the paragraph 1 of this article shall be the discretion of the Buyer and the Buyer's decision not to use these rights in full or partially, shall not mean that the Buyer has withdrawn these rights for future use.

7.4 Performance defect – Parties hereby agree that considering the complexity and the scale of the Buyer's business operations, the valuation of the product quality by the Buyer may be time-consuming procedure. Therefore, the Buyer shall be entitled to submit its claim to the Seller regarding the visible product defects no later than within 30 working days from the date of execution of the final deliver-acceptance act among the parties. The Buyer shall be entitled to submit the claims regarding the hidden product defects within 30 working days from the date when such defect should have been identified by all reasonable standards. Parties hereby confirm that execution of the final delivery-acceptance act and the payment of the product price shall not mean that the Buyer has no claims in relation to the product quality.

8. Article. Liability of the parties

8.1 Parties shall reimburse each other the damages arising out of the non-performance of the obligations as per the rules determined by the applicable law and this Agreement. The reimbursement of damages shall not discharge the relevant party from the duty to perform its obligations and shall not release the breaching party from any potential sanctions (including but not limited to the penalty, etc.) determined by the applicable law or this Agreement.

8.2 In case the Seller fails to deliver the product within the time agreed in this Agreement, the Buyer shall be entitled to impose a financial penalty on the Seller as follows:

- For delays up to 30 days, a penalty of 0.02% of the total value of this Agreement per day, applicable from the 1st day of delay;
- For delays exceeding 30 days but not more than 90 days, a penalty of 0.05% of the total value of this Agreement per day, applicable from the 1st day of delay;
- For delays exceeding 90 days, a penalty of 0.10% of the total value of this Agreement per day, applicable from the 1st day of delay.

The Buyer shall also be entitled to deduct any accrued penalty from any amount payable to the Seller, without requiring additional consent. The Seller shall ensure payment of the accrued penalty within 5 working days from the date of such request by the Buyer.

8.3 In case if the Buyer fails to pay the product price within the time agreed in this Agreement, the Seller shall be entitled to impose the financial penalty on the Buyer in the amount of 0.01% of the payable sum for each day of delay, until the performance of this obligation by the Buyer.

8.4 If for any reason the price cannot be determined, the Seller fails to deliver any one or more compliant consignments of the product when due, the Seller breaches any term of this Agreement, and/or the Seller's financial worthiness becomes unsatisfactory to the Buyer, the Buyer shall have the right, in addition to all other remedies available to it under the Agreement or at law or in equity, to (a) suspend or cancel the Agreement in whole or in part, (b) suspend or cancel further payments to the Seller, (c) recover all payments which it has already made to the Seller, (d) refuse to accept further deliveries of the products, (e) recover from the Seller any expenditure incurred by the Buyer in obtaining the products in substitution from another supplier, and/or (f) claim damages for any additional costs, losses or expenses incurred by the Buyer which are in any way attributable to the matters stated above, including without limitation loss of profits and the cost of collection.

8.5 The Buyer's liability and Seller's recovery, for any injuries, losses, damages, expenses, costs and/or other liabilities occasioned by, arising out of and/or relating to any suspension or cancellation of this Agreement by the Buyer (including any refusal by the Buyer to accept delivery of the Products), any breach of the Agreement by the Buyer, and/or any other act or omission of the Buyer (including its negligence), shall be limited to the lesser of (a) the actual and direct costs incurred by Seller for its manufacture of the Products in question prior to such cancellation, breach, or other act or omission, or (b) the Price of the Products actually delivered pursuant to this Agreement. In no event shall the Buyer be liable to the Seller for any punitive, special, consequential, indirect, exemplary and/or incidental damages, including without limitation any loss of business, profit or goodwill.

8.6 Without prejudice and in addition to any other provision of the Agreement, the Seller will indemnify, hold harmless and, if applicable and upon the Buyer's request, defend at Seller's sole cost and expense, the Buyer, its agents, servants, officers, directors and employees, the Buyer's distributors, dealers and all entities which purchase the Products or products into which the Products are incorporated, and their respective customers, harmless against any suit, action, proceeding, judgment, liability, cost, damage, loss, claim and expenses (including without limitation loss of profits and the cost of collection) occasioned by, arising out of, relating to and/or alleging any claim for injury, death, damage or loss to any person or any property, breach of any guidelines, standards, laws or regulations, or any consequential or incidental damages resulting therefrom, caused or contributed to by (a) any fault, defect or alleged defect in the Products (including by reason of strict liability in tort), (b) any breach by the Seller of the Contract, (c) any breach by the Seller of applicable guidelines, standards, laws or regulations, (d) any act, omission, fault, or negligence of Seller or anyone acting on its behalf, and/or (e) any infringement, misappropriation or other violation of the patent, trade secret, trademark, trade name, or other intellectual property right of any other person, firm, corporation or other entity arising from the manufacture, sale or use of any of the Products. In connection with the Products or otherwise, if the Seller's employees, agents, sub-contractors or other representatives are on or present at any premises of the Buyer, the Seller shall be and is responsible for the acts and omissions of such persons within or about the Buyer's premises and agrees to indemnify and hold the Buyer harmless against liability for damage to property or injury to or death of persons arising out of such acts or omissions of such persons. In the event of a claim against the Buyer which may be the subject of indemnification, the Buyer shall provide written notification thereof to the Seller. The Seller shall provide the Buyer with such reasonable assistance in the prosecution of any defense as the Buyer may request. The Seller will, in respect of any claim or suit, reimburse the Buyer for the legal and other actual defense expenses paid by the Buyer and/or the Buyer's insurance carriers, and for the actual amount of any settlement or final judgment award paid by the Buyer and/or the Buyer's insurance carriers. Without prejudice to the generality of the foregoing, the Seller shall indemnify the Buyer against all actions, claims, demands, costs, charges and expenses arising from and/or incurred by reason of any infringement or alleged infringement of copyright, patent, registered design or other property right.

9. Article. Force-Majeure

9.1 The parties shall be released from performance of their respective obligations under this agreement in case and to the extent of force-majeure events, which shall include such circumstances originating beyond the will of the respective party the control of occurrence and operation of which goes beyond the reasonable abilities of the relevant party, including but not limited to war, riots, civil disturbances, revolutions, strikes, lock-outs, accidents, fires, floods or other acts of god, embargoes, government actions, any legal or illegal action or act of any third party, as a result of which performance of obligations stipulated under the agreement becomes impossible. In addition, any amendment to Georgian law, which deteriorates legal position of any party, affects the opportunity of performance of the obligation(s) to be fulfilled by the parties, the terms and/or expenses, including but not limited to any unfavorable legal act and/or action of any local, central, state, governmental, management, self-governmental, registering or other authorities shall be deemed as force-majeure event. Any such force-majeure event shall release the parties from any liability to each other to the extent of such force-majeure event, and the term for parties' performance of their obligations under this agreement shall be extended for a period equal to the duration of such event.

9.2 The party affected by any force-majeure event shall notify the other party in writing on the occurrence and ending of such event within no later than 2 (two) business days from its occurrence.

9.3 The rights and obligations of the parties shall resume from the date of the termination of force majeure.

10. Article. Confidential information

10.1 All information related to the activities of the Buyer that has been disclosed to the Seller based on this Agreement, or throughout the duration of this Agreement, shall be considered as a confidential information. The confidential information shall be the property of the Buyer and any use, or transfer of such information to any third party shall be prohibited.

10.2 The Seller shall protect the confidential information, shall not copy or disclose by any means and shall take all adequate measures to protect the confidentiality of the information which has been disclosed to the Seller based on this Agreement.

10.3 The Seller shall not disclose or transfer the confidential information to any third party without prior written consent of the Buyer. Except for the rules provided by the law, in case if the Seller is obligated by the law to disclose the information, the Seller shall immediately inform the Buyer about receiving any request for the disclosure of confidential information and shall take all adequate measures to restrict the access to confidential information within the terms allowed by the law.

10.4 Upon the termination of this Agreement for any reason, or by the request of the Buyer, the Seller shall return all copies of such confidential information and ensure the removal of such information from its computers/programs and any other sources.

11 Labor and Health safety

11.1 The conditions set forth in this article apply to the Seller only in the event that the provision/delivery of the Goods/Materials based on this Agreement implies/includes the performance of any type of work to which the labor safety regulatory legislation of Georgia applies.

11.2 The Seller shall comply with all applicable local legislation of Georgia related to the Health, Safety, Labor safety, Environmental Safety (hereinafter the "HSE") including but not limited to Occupational Safety and Health Administration requirements, as well as the instructions of the Labor Inspection Office of the Ministry of Internally Displaced Persons from the Occupied Territories, Labor, Health and Social Affairs of Georgia.

11.3 Safety Plan and Procedures: The Seller shall develop and implement a comprehensive safety plan that addresses the specific hazards associated with the project. The plan shall include safety procedures, risk assessments, emergency response protocols, and measures for ongoing safety training and communication.

11.4 Personal Protective Equipment (PPE): All workers hired by the Seller shall be provided with appropriate personal protective equipment, such as hard hats, safety glasses, gloves, and safety shoes and etc., whatever is required/relevant in accordance with the legislation of Georgia related to the labor safety, including but not limited to Occupational Safety and Health Administration requirements, as well as the laws instructions of the Labor Inspection Office of the Ministry of Internally Displaced Persons from the Occupied Territories, Labor, Health and Social Affairs of Georgia.

11.5 Site Safety Inspections: The Seller shall conduct regular inspections of the work site to identify and address any potential safety hazards promptly. Inspections may include but are not limited to scaffolding, fall protection systems, electrical equipment, and machinery.

11.6 Accident Reporting and Investigation: In the event of any work-related accidents, incidents, or near misses, the Seller shall promptly report them to the designated representative of the Buyer. The Seller shall also conduct a thorough investigation to determine the cause and implement corrective measures to prevent future occurrences.

11.7 Subcontractor Compliance: The Seller shall ensure that all subcontractors (if any) engaged in the project comply with the HSE requirements set forth in this contract. The Seller shall maintain documentation of the subcontractors' safety records, certifications, and training programs.

11.8 Safety Training: The Seller shall provide adequate safety training to all workers involved in the project, including orientation for new hires and ongoing training sessions as necessary. The training shall cover hazard recognition, proper use of equipment, emergency procedures, and any specific safety protocols relevant to the project.

11.9 Work Suspension: In the event that a serious HSE safety violation or imminent danger is identified, the Buyer or its designated representative reserves the right to suspend work until the safety concern is adequately addressed and resolved.

11.10 Buyer's rights: the Buyer shall be entitled to issue mandatory instructions to the Seller or their representatives in respect with the HSE safety requirements and the Seller or their representatives shall strictly follow any such instruction. The Seller shall be liable for the compliance with the Buyer's internal HSE safety policies and instructions, as communicated to the Seller from the Buyer's representatives.

11.11 HSE Officer: The Seller shall assign at least 1 person who will be in charge of the HSE Safety during the provision of services. Such person designated by the Seller shall be duly certified and accredited as per the mandatory requirements of the legislation of Georgia, or by The National Examination Board in Occupational Safety and Health (NEBOSH) or by The Institution of Occupational Safety and Health (IOSH). The HSE Officer of the Seller shall be directly and personally responsible for the ensuring of the HSE compliance with this contract, as well as the HSE requirements of the Georgian legislation.

11.12 Work accident insurance: In case if the works carried out by the Seller qualify as an excessively dangerous, hard, harmful

and hazardous work (as per the legislation of Georgia), the Seller shall ensure the provision of work-accident insurance for their employees.

11.13 In case if the services provided by the Seller, includes the carrying out of certain works as a result of which the industrial waste is produced (including, but not limited to: construction waste, dangerous waste, etc.) the Seller shall be under the obligation to ensure, at its own cost, the removal of such waste from the Buyer's territory and the transportation and/or disposal of such waste as per the rules and procedures determined by the legislation of Georgia.

11.14 Indemnification: The Seller shall indemnify and hold harmless the Buyer from any claims, damages, costs, expenses, loss of profit/revenue, loss of production, financial loss, loss of use, loss of raw materials, loss of contracts or other indirect damages and liabilities arising out of the Seller's failure to comply with HSE requirements or any work-related accidents or injuries resulting from such non-compliance. Such claims shall not be subject to the liability limitation clauses that might be agreed by parties in this contract.

11.15 Financial Penalties for HSE Violations In addition to any indemnification or liability provisions stated herein – the Buyer shall be entitled to impose the financial penalty on the Seller for each violation of the labor and health safety obligations stipulated in this Article 11 and/or applicable Georgian legislation. The penalties shall be calculated as follows: For the first violation – a penalty equal to not more than 1% of the total value of this Agreement shall apply; For each subsequent violation – a penalty equal to not more than 2% of the total Agreement value shall apply per case. The Buyer shall be entitled to deduct the imposed penalty amount from any payables that Buyer owes to the Seller under this Agreement or any other agreement between the parties.

12 Article. Legal effect and the duration of the Agreement

12.1 This Agreement shall take legal effect on the day of signing by both parties and shall be valid until the full performance of the obligations by parties.

12.2 This Agreement (as well as any other agreement associated with it) may be terminated based on the following grounds:

12.2.1 Written agreement of the parties

12.2.2 Full performance of the obligations by parties

12.2.3 The Buyer shall be entitled to terminate this Agreement

prematurely, without any reason/ground, based on its unilateral decision, by sending to the Seller the termination notice in written or electronic form, at least 14 calendar days before the termination date. In such case, the Buyer shall ensure the payment for the goods that were delivered by the Seller before the termination date.

12.2.4 In case due to the force majeure, parties are unable to perform the obligations for more than 10 days.

12.2.5 Each party shall be entitled to unilaterally terminate this Agreement if the counter party fails to correct the performance defect within the additional time determined by the first party, or if the first party has lost interest in the correction and therefore the additional time is no longer relevant.

12.2.6 Each party shall be entitled to unilaterally terminate this Agreement if the representations and warranties made under this Agreement or any document exchanged by the parties turns out to be false, inaccurate or misleading.

12.3 The Buyer shall also be entitled to terminate this Agreement unilaterally if the Seller has passed away/is subject to liquidation or reorganization proceedings as per the law on entrepreneurs of Georgia or if it is subject to the insolvency proceedings

13 Article. Sanctions Compliance

13.1 Compliance with Sanctions Laws – Seller hereby represents and warrants that, in connection with the performance of this

Agreement, it shall comply with all applicable sanctions, export control laws, and regulations, including but not limited to those administered by the United Nations, the United States Department of the Treasury's Office of Foreign Assets Control (OFAC), the European Union, United Kingdom and other relevant authorities (collectively, "Sanctions Laws").

13.2 Prohibited Activities - Seller shall not, directly or indirectly, engage in any transaction or perform any activity under this Agreement that would result in a violation of applicable Sanctions Laws by either party. This includes, but is not limited to, dealing with persons, entities, or jurisdictions designated under Sanctions Laws as restricted or prohibited.

13.3 Representations and Warranties: Seller represents and warrants that neither it, nor any of its affiliates, officers, directors, or employees:

13.3.1 Is a designated target under Sanctions Laws (a "Sanctioned Person")

13.3.2 Is owned or controlled by, or acting on behalf of, a Sanctioned Person; or

13.3.3 Is located, organized, or resident in a country or territory that is the target of comprehensive sanctions under applicable Sanctions Laws.

13.4 Notification Obligation - Seller agrees to promptly notify the Buyer party if it becomes aware that it or any of its affiliates has become a Sanctioned Person or has otherwise violated any applicable Sanctions Laws in connection with this Agreement.

13.5 Termination Rights - In the event that Buyer reasonably determines that the Seller has breached this clause, it shall have the right to suspend or terminate this Agreement immediately upon written notice, without any liability or obligation to the other party.

13.6 Indemnification - Seller agrees to indemnify, defend, and hold harmless the Buyer from and against any and all losses, damages, claims, or penalties arising out of or related to the indemnifying party's breach of this clause.

13.7 Transportation of Goods – If, under the terms of this Agreement, the Seller is responsible for transporting the purchased Goods to the Buyer's address or any mutually agreed destination, the Seller shall also adhere to the following obligations:

13.7.1 Prohibited Routes - The Seller shall not transport the goods through the territories of the Russian Federation, the Islamic Republic of Iran, North Korea, or any other country currently under international sanctions that may affect the delivery of goods.

13.7.2 Route Confirmation - The Seller is obligated to provide the Buyer with a detailed transportation route prior to commencing the shipment and must obtain written or e-mail confirmation of approval from the Buyer. Any deviation from the approved route shall be subject to prior written or e-mail consent from the Buyer.

13.7.3 Bank Suspension of Payment Due to Sanctions - In the event the Buyer's bank suspends payment due to sanctions or related compliance concerns, the Buyer shall not be subject to any penalties or liabilities, nor shall such suspension be deemed a breach of the Buyer's obligations under this Agreement.

13.7.4 Provision of Additional Information - If the Buyer's bank requests additional documentation or information related to the shipment for compliance purposes, the Seller shall promptly provide all requested information. Until such information is provided to the Buyer and approved by the bank, the Buyer shall not be held liable for payment delays.

13.8 The Seller additionally represents and warrants that any payment made to the Seller under this agreement is solely for the benefit of the Seller. No beneficiary of any such payments is subject to any sanction, prohibition, or restriction (including designation by the EU, UK, US and/or UN under any of the sanctions, laws, or regulations of the EU, UK, US and/or UN).

14 Article. Final provisions

14.1 Amendments - Any amendment in this Agreement is valid if executed in written form and signed by parties.

14.2 Invalidity - If any provision of this Agreement is, or is held to be, invalid or unenforceable then, so far as it is invalid or unenforceable, it has no effect and is deemed not to be included in this Agreement provided that this shall not invalidate any of the remaining provisions of this Agreement and the parties shall use all reasonable endeavors to replace the invalid or unenforceable provision by a valid provision the effect of which is as close as possible to the intended effect of the invalid or unenforceable provision.

14.3 Attachments/Annexes – any attachments/annex annexed to this Agreement, shall constitute its integral part. In case of apparent discrepancy between the terms of the Agreement and the Annex, the later shall prevail.

14.4 This Agreement constitutes the entire agreement and understanding of the Parties with regard to the subject of this Agreement, and supersedes any and all other prior agreements, both written and oral, between the Parties with respect to the subject matter of this Agreement.

14.5 Assignment – The Seller shall not be entitled to assign its rights and duties arising out of this Agreement to any third party without the prior written or electronic approval of the Buyer.

14.6 Successors – All provisions of this Agreement shall remain valid and binding upon the legal successors and/or heirs of the Parties.

14.7 Waiver - No waiver of any provision of the Agreement shall be valid or binding on Buyer unless the waiver is made in writing and signed by an authorized representative of Buyer. No waiver by Buyer of any breach by the Seller shall be construed as a waiver of any succeeding breach of the same or any other term of the Agreement. No failure or delay on the part of Buyer in the exercise of any power or right hereunder shall operate as a waiver of such power or right. Nothing contained herein shall limit the remedies of Buyer in the event of the Seller's breach of the Agreement.

14.8 Disputes – any and all disputes in relation to this Agreement shall be settled through the amicable agreement of the parties. Any dispute arising from or in respect of this agreement, including any matter regarding existence, validity and termination of the agreement and/or arbitration clause shall be examined and finally decided on by the permanent court of arbitration Dispute Resolution Center (Tbilisi, Georgia) the DRC, registration code 204547348 and having their registered offices at II floor, 71 Vazha-Pshavela Avenue and the web-site at WWW.DRC.GE).

14.9 The issues not regulated by this Agreement, shall be governed by the applicable Georgian law.

14.10 In case of discrepancies between the languages, the text in English language shall prevail.

14.11 Nothing in the Contract shall create or be construed as creating a partnership, joint venture, a contract of employment or relationship of employer and employee, or a relationship of principal and agent between the Seller and the Buyer.

14.12 This Agreement is executed in 2 copies, one for each party.

#1 Annex

Specific Commercial terms

1. Description of the purchased goods/materials:
2. Price:
3. Delivery term:
4. Delivery date:
5. Payment terms:

Note: In the event that the Seller's failure to provide a Tax Residency Certificate in accordance with Clause 2.5 of Article 2 of the Standard Terms of this Agreement results in the imposition of any tax on the Buyer based on the legislation of Georgia, the Buyer shall have the right to withhold the amount of such tax from the amount of any fees payable to the Seller, before the Seller does not ensure that the certificate is presented in the requested form. Upon Seller's delivery of certificate in the form requested by Buyer, Buyer shall reimburse Seller for any amount withheld pursuant to this clause. For clarity, where no applicable double taxation avoidance agreement exists, the applicable withholding tax rate under Georgian legislation is currently 10%, or 15% in the case of Service Providers resident in offshore jurisdictions, as determined in accordance with Georgian law.

6. Warranty:
7. The Seller shall dispatch the original documents related to the goods and the shipment of these goods to the Buyer via DHL/FedEx and by email to the following address: sanjay1.gupta@indorama.com
8. HS codes:
9. Other specific commercial terms (if applicable):

Signatures:

Buyer

Jay Prakash Jajoo

Seller

Bank account details:

Ø Bank name:

Ø Swift code:

Ø beneficiary name:

Ø IBAN

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